

25PR01440 Matter of The Duane I Delong Trust

County: sonoma

Division: Probate

Hearing date: 2026-07-17

Motion: Petition for Order Confirming Trust Assets

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Petition for Order Confirming Trust Assets

Tentative Ruling: This matter is CONTINUED to October 23, 2026 at 9:30 a.m. in Department 63 to allow the petitioner an additional opportunity to cure the notice defects noted below. Generally, no more than two continuances will be permitted before the matter is dismissed without prejudice. Sonoma County Local Rule 6.2(C)(2)(c).

The petition and the declaration of counsel indicate that there is a lender with an interest in the real estate at issue here. That lender must be served in accordance with California Probate Code (Prob C) §851(a)(2). The petitioner should note that Prob C §851(a) requires service of the notice of hearing and a copy of the petition in the manner provided by California Code of Civil Procedure (CCP) §413.10 et seq. (i.e. in the manner of a summons.)

The Court acknowledges the proof of electronic service to the lender filed June 16, 2026. Electronic notice is not sufficient, because it does not constitute service in the manner provided by (CCP) §413.10 et seq. (i.e. in the manner of a summons.) See Prob C §851(a)(2); CCP sections 415.10-415.95; CCP §1010.6(a)&(c); and California Rules of Court Rules 2.251(a), (b) & (f). Under the present circumstances, electronic service to the lender is inappropriate absent express consent, properly rendered.